RESIDENTIAL LEASE AGREEMENT

Foxglove Commons | Birmingham, AL

Landlord	Foxglove Commons Owner LLC
Resident	Hector Evans
Dwelling	Unit 262626, Foxglove Commons
Lease Date	March 2, 2022
Monthly Rent	$2,092

1. Parties and Premises. This Residential Lease is between Foxglove Commons Owner LLC ("Landlord") and the Resident named herein for the dwelling at Foxglove Commons, 7845 Pioneer Parkway, Birmingham, AL 41107. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of AL. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

2. Term and Rent. The lease term is 45 months. Monthly rent is due on the first day of each month, with a late charge of 5% assessed after the 45th day. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Time is of the essence with respect to each and every provision of this instrument.

3. Security Deposit. Resident has paid a refundable security deposit which shall be returned within thirty days after move-out less lawful deductions for damages beyond normal wear. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

4. Utilities and Fees. Resident is responsible for electricity and internet. Water, sewer and trash are billed back through a monthly utility fee. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

5. Occupancy. The dwelling shall be occupied only by the persons listed on this lease. Guests staying more than fourteen days require written consent. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

6. Pets. No animals are permitted without a signed Pet Addendum, a nonrefundable pet fee and monthly pet rent. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

7. Maintenance and Entry. Landlord may enter the dwelling after reasonable notice to make repairs or show the unit. Emergencies may require entry without notice. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

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8. Community Rules. Resident agrees to abide by the community rules including quiet hours, parking regulations, trash disposal and amenity use. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of AL. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

9. Early Termination. Resident may terminate early by giving sixty days' written notice and paying a termination fee equal to two months' rent. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

10. Renter's Insurance. Resident is required to maintain renter's liability insurance throughout the lease term. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

11. Parties and Premises. This Residential Lease is between Foxglove Commons Owner LLC ("Landlord") and the Resident named herein for the dwelling at Foxglove Commons, 7845 Pioneer Parkway, Birmingham, AL 41107. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

12. Term and Rent. The lease term is 35 months. Monthly rent is due on the first day of each month, with a late charge of 5% assessed after the 35th day. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of AL.

13. Security Deposit. Resident has paid a refundable security deposit which shall be returned within thirty days after move-out less lawful deductions for damages beyond normal wear. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

14. Utilities and Fees. Resident is responsible for electricity and internet. Water, sewer and trash are billed back through a monthly utility fee. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of AL. Time is of the essence with respect to each and every provision of this instrument.

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Signatures

IN WITNESS WHEREOF, the parties have executed this instrument as of the date first written above.

_____

Foxglove Commons Owner LLC

By: Brian Vasquez Title: Manager Date: 03/02/2022

_____

Hector Evans

By: Anthony Vasquez Title: Manager Date: 03/02/2022

Exhibit A - Property

Foxglove Commons, 7845 Pioneer Parkway, Birmingham, AL 41107. Parcel containing approximately 12.17 acres, together with all improvements thereon.

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